

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Katherine Matejcek	Team: Squad #07	CCRB Case #: 201800013	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Sunday, 12/24/2017 9:04 PM	Location of Incident: Inside of § 87(2)(b)	18 Mo. SOL 6/24/2019	Precinct: 69		
Date/Time CV Reported Mon, 12/25/2017 8:43 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Mon, 12/25/2017 8:43 PM		

Complainant/Victim	Type	Home Address
[REDACTED]	[REDACTED]	[REDACTED]

Witness(es)	Home Address
[REDACTED]	[REDACTED]

Subject Officer(s)	Shield	TaxID	Command
1. POF Stephanie Toussaint	11464	958129	069 PCT
2. POM Kevin Savary	30823	931168	069 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POF Stephanie Toussaint	Abuse: Police Officer Stephanie Toussaint damaged § 87(2)(b)'s property.	A . Unsubstantiated
B . POM Kevin Savary	Abuse: Police Officer Kevin Savary damaged § 87(2)(b)'s property.	B . Unsubstantiated
C . POF Stephanie Toussaint	Abuse: Police Officer Stephanie Toussaint entered the basement of § 87(2)(b) in Brooklyn.	C . Unsubstantiated
D . POM Kevin Savary	Abuse: Police Officer Kevin Savary entered the basement of § 87(2)(b) in Brooklyn.	D . Unsubstantiated

Case Summary

On December 25, 2017, § 87(2)(b) filed this complaint via phone with the CCRB.

At approximately 9:04 p.m. on December 24, 2017, § 87(2)(b)'s tenant, § 87(2)(b) called 911 to report that she had no heat or electricity. PO Stephanie Toussaint and PO Kevin Savary of the 69th Precinct responded to § 87(2)(b) in Brooklyn and allegedly called a locksmith to laser open the locks on the basement door so that they could enter, reset the circuit breaker, and restore energy to § 87(2)(b) apartment (**Allegations A, B, C, and D: Abuse of Authority, unsubstantiated**). No one was arrested or issued a summons as a result of this incident, and no video footage was available. § 87(2)(b) learned of this incident from viewing the live security camera at the property, which does not record. § 87(2)(g).

Allegation A – Abuse of Authority: Police Officer Stephanie Toussaint damaged § 87(2)(b)'s property.

Allegation B – Abuse of Authority: Police Officer Kevin Savary damaged § 87(2)(b)'s property.

Allegation C – Abuse of Authority: Police Officer Stephanie Toussaint entered the basement of § 87(2)(b) in Brooklyn.

Allegation D – Abuse of Authority: Police Officer Kevin Savary entered the basement of § 87(2)(b) in Brooklyn.

§ 87(2)(g)

§ 87(2)(b) explained that § 87(2)(b) contains three separate units: the front apartment, where she occasionally stays; the rear apartment, where § 87(2)(b) resides; and the basement apartment, which usually has other tenants but was vacant at the time of the incident. The breaker is located in the basement unit, which is not a shared space. At the time of the incident, § 87(2)(b) was scheduled to be legally evicted on February 28, 2018 [01 Board Review]. Once the eviction was scheduled, § 87(2)(b) turned off the heat and electricity in § 87(2)(b)'s unit with the exception of one outlet. However, because § 87(2)(b) still resides in that unit, she has been using that one outlet for all of her appliances. From time to time, this trips the breaker and causes her to lose power. Police have responded to § 87(2)(b) at least three times in the months leading up to the incident for this reason. At approximately 10:30 p.m., she checked her building's live security feed and saw police officers walking around the building. She did not see whether they entered or not. The next day, she visited the apartment and found that the two locks on the basement door had been opened with a laser, which she photographed [02 Board Review] and the door had been left unsecured. Based on this information, § 87(2)(b) gathered that the officers she had seen on the video had entered the basement without her permission to fix the circuit breaker for § 87(2)(b). § 87(2)(b) then called the 69th Precinct and learned that officers had called a locksmith so that they could get into the basement and reset the breaker for § 87(2)(b). § 87(2)(b) The officers claimed that they had tried to get in touch with § 87(2)(b) numerous times before calling the locksmith, but had not reached her. Later, § 87(2)(b) noticed a voicemail on her phone from Sgt. Anthony Pons of the 69th Precinct asking her to call him back so that he could refer her to landlord-tenant court. There was no timestamp on this voicemail. § 87(2)(b) never received a bill for the cutting of the locks [03 Board Review].

§ 87(2)(b) refused to provide a statement for this case. However, in an email sent to the CCRB, she stated that she had no heat in her apartment on December 24, 2017. She called the police, who checked the radiator, stove, and faucets in her apartment and confirmed that she had no heat or hot water. The police made numerous calls to § 87(2)(b)'s cell phone but did not receive a response. § 87(2)(b) did not specify if or how the officers dealt with the situation, but stated that by the morning of December 25, 2017, she had heat in her apartment again [04 Board Review].

The Event Information for this incident shows that § 87(2)(b) called 911 to report that her landlord turned off the heat in her apartment. The job was categorized as an illegal eviction. Sector C (PO Toussaint and PO Savary) arrived on scene at 9:17 p.m. and left at 10:18 p.m. [05 Board Review].

PO Toussaint testified that she and her partner responded to a call reporting an illegal eviction at 9:04 p.m. on December 24, 2017. PO Toussaint stated that she has responded to similar jobs at § 87(2)(b) in the past, although she did not recall how many. § 87(2)(b) and the officers called § 87(2)(b) but did not get an answer. § 87(2)(b) told the officers that she did not know where the breaker was located, but believed that it was in an area of the home that she did not have access to. PO Toussaint stated that, at that point, it was clear that she and her partner could not do anything besides generate a complaint report. The officers completed the report and left the scene. PO Toussaint stated that she and her partner never entered the house to reset the breaker, called a locksmith, or damaged any property. PO Toussaint does not know if or how the landlord-tenant issue was resolved [06 Board Review].

§ 87(2)(g) PO Savary and PO Toussaint do not keep equipment for opening locks with them while on patrol, and denied that either of them called ESU or took any other steps to either enter the basement or restore heat to the apartment. Like PO Toussaint, PO Savary denied entering the basement, calling a locksmith, or damaging any locks during this incident, and stated that he and his partner were the only officers who responded to the scene [07 Board Review].

§ 87(2)(g)

it is recommended that **Allegations A, B, C, and D** be closed as **unsubstantiated**.

Mediation, Civil and Criminal Histories

- This case was unsuitable for mediation.
- As of February 7, 2018, the New York City Office of the Comptroller had no record of a Notice of Claim being filed in regards to this complaint [04 Board Review].
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which [§ 87(2)(b)] has been a party [09 Board Review].
- PO Toussaint has been a member-of-service for three years and has been a subject in one CCRB complaint and two allegations which are currently under investigation. [REDACTED]
[§ 87(2)(g)]
[REDACTED]
- PO Savary has been a member-of-service for 15 years and has been a subject in 12 CCRB complaints and 29 allegations, none of which were substantiated. [§ 87(2)(g)]
[REDACTED]

Squad No.: 7

Investigator:	Signature	Print Title & Name	Date
Squad Leader:	Signature	Print Title & Name	Date
Reviewer:	Signature	Print Title & Name	Date